PARLIAMENT OF CEYLON

1st Session 1960-61

Motor Traffic (Amendment) Act, No. 63 of 1961

Date of Assent: 1st July, 1961

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L. D.—O. 12/61.

AN ACT TO AMEND THE MOTOR TRAFFIC ACT, No. 14 OF 1951.

[Date of Assent: 1st July, 1961]

BE it enacted by the Queen's Most Excellent Majesty, by and with the advice and consent of the Senate and the House of Representatives of Ceylon in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

1. This Act may be cited as the Motor Traffic (Amendment) Act, No. 63 of 1961.

Amendment of section 35 of Act No. 14 of 1951.

2. Section 35 of the Motor Traffic Act, No. 14 of 1951, hereinafter referred to as the "principal Act", is hereby amended in sub-section (1) of that section as follows:—

(1) in paragraph (*a*) of that sub-section, by the substitution, for the words "that coach; and", of the words "that coach;";

(2) in paragraph (*b*) of that sub-section,—

(*a*) by the omission of the words "a hiring car or"; and

(*b*) by the substitution, for the words "that car or omnibus, as the case may be:", of the words "that omnibus; and";

(3) by the insertion, immediately after paragraph (*b*) of that sub-section, of the following new paragraph:—

"(*c*) for a hiring car, the maximum number of persons authorised to be carried in that car so however that such maximum number does not exceed eight (including the driver).";

and

(4) by the omission of the Proviso to that sub-section.

Amendment of section 180 of the principal Act.

3. Section 180 of the principal Act is hereby amended, by the repeal of sub-section (2) of that section, and the substitution therefor of the following new sub-section:—

"(2) Where the number of persons found at any time in a private car on a highway exceeds eight (including the driver thereof), the driver thereof shall be guilty of an offence under this Act.".

J. N. R 17257—4,250 (5/61)

Amendment of section 181 of the principal Act.

4. Section 181 of the principal Act is hereby amended as follows:—

(1) in sub-section (1) of that section—

(*a*) by the substitution, for the word "passengers", of the words "persons (including the driver)";

(*b*) by the substitution, for the word "passenger", of the word "person"; and

(*c*) by the omission of the Proviso to that sub-section;

(2) in sub-section (3) of that section, by the substitution in sub-paragraph (ii) of paragraph (*a*) of that sub-section, for the words "a hiring car or", of the word "an";

(3) by the insertion, immediately after sub-section (3) of that section, of the following new sub-section:—

"(3A) For the purposes of this section in its application in the case of a hiring car,—

(*a*) a child under three years of age not occupying a separate seat in that car shall not be reckoned as a person;

(*b*) two children, being each over three years and under twelve years of age, shall be reckoned as one person."; and

(4) in the marginal note to that section, by the substitution, for the words "of passengers", of the words "of persons or passengers".